

Defendant.

No response has been filed by the Defendant.

**Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

**Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant Smith is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

**3. 9:00 AM CASE NUMBER: L24-03844**

**CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS**

**\*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585**

**FILED BY: CONNECT BY AMERICAN FAMILY**

**\*TENTATIVE RULING.\***

Plaintiff has filed a Motion to Deem Facts Admitted. There is no opposition, but the proof of service attached to the Motion indicates email service to the Defendant on 6/10/26. This is short of the 16 court days of notice required by the CCP (excluding the additional time required for email service).

What's more, even if the service had been timely, there is no indication that Defendant, who is self-represented, ever consented to service by email.

**Disposition**

This Motion will be continued to 9/22/26, 9am.

Plaintiff to file the order reflecting this ruling, and to properly serve Defendant with the Motion and notice of the motion date.

**4. 9:00 AM CASE NUMBER: L24-05794**  
**CASE NAME: JPMORGAN CHASE BANK, N.A. VS. YEKATERINA RAMIREZ**  
**\*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**  
**FILED BY: JPMORGAN CHASE BANK, N.A.**  
**\*TENTATIVE RULING:\***

#### Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

#### Analysis

Mail service was completed at an address for the Defendant that was provided in the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,867.14, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,200.

Costs are \$0.

#### Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,667.14.

Plaintiff to file order on Motion, as well as submit Judgment.